HEADNOTE

"1. Pursuant to Art. 33(1) (a) UPCA actions shall be brought before the division where the actual or threatened infringement has occurred or may occur. In case of multiple defendants, this requires that infringing activities in the Contracting Member State hosting the local division regarding all Defendants are asserted by Claimant.
2. Pursuant to Art. 33(1) (b) UPCA a local division is competent to hear the case against multiple defendants where one of the defendants has its residence, provided that the defendants have a commercial relationship and where the action relates to the same alleged infringement, regardless of their domicile or seat.
3. Combining the actions against three defendants together serves the purpose to avoid parallel proceedings before different local or regional divisions and the risk of contradictory decisions, which could result from having a decision solely on the infringement regarding the plant in France (Defendants 1) and 2)), which Claimant described as simply a representative for the other plants, in one case, and regarding other , allegedly similar , plants in other UPCA countries (Defendant 1)), in a second, respectively selling allegedly key supportive elements (Defendant 3)) to said plants of Defendant 1), in a third."

COURT
Local Division in Hamburg

PROCEEDINGS
Procedural order

PATENT
EP 3 240 620
PROCESS FOR SEPARATION OF GASES WITH REDUCED MAINTENANCE COSTS

KEYWORDS
Art. 33(1) (a) UPCA | Art. 33(1) (b) UPCA | competence | multiple defendants | commercial relationship

Article 33 Competence of the divisions of the Court of First Instance

SUMMARY
The Local Division in Hamburg issued a procedural order. The patent at issue relates to a process for separation of gases with reduced maintenance costs. According to the headnotes of the decision, a local division has competence where the actual or threatened infringement occurs in that division's member state. When multiple defendants are involved, the claimant must assert infringing activities by all defendants in that same member state. Furthermore, a local division may hear cases against multiple defendants if one defendant resides there. This requires that the defendants share a commercial relationship and that the action concerns the same alleged infringement. This applies regardless of where the other defendants are located. The decision explains that combining actions against several defendants serves an important purpose. It prevents parallel proceedings before different divisions that could lead to contradictory outcomes. In this case, the claimant described one defendant as a representative for plants in France. The claimant also asserted infringement at similar plants in other countries and by a supplier of key components. Consequently, handling all claims together in a single proceeding protects against the risk of fragmented and conflicting decisions.